

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL APPELLATE JURISDICTION)

Present:

Mr. Justice Md. Bashir Ullah

Civil Rule 351(Con) of 2009

In the matter of:

An application under Section 5 of the
Limitation Act

And

In the matter of:

Md. Azad Miah and others

... Appellants -Petitioners

-Versus-

Rahmat Ullah and others

... Respondents-Opposite parties

Mr. M. Khaled Ahmed, Senior Advocate with
Ms. Nasrin Sultana Rina, Advocate

... For the Petitioners

Not represented

... For the Respondents-Opposite parties

Heard and Judgment on: 23.10.2025

On an application under Section 5 of the Limitation Act, 1908 this Rule was issued on 29.04.2009, calling upon the opposite parties to show cause as to why the delay of 226 days in filing the First Miscellaneous Appeal against order dated 28.04.2008, passed by the learned District Judge, Moulvibazar in Civil Miscellaneous Case No. 18 of 2006, should not be condoned and/or pass such other or further order or orders as to this Court may seem fit and proper.

The relevant facts, in brief, are that the appellants-petitioners filed Title Appeal No. 11 of 2005 which was dismissed for default on 02.05.2006. Challenging the said order the appellants-petitioners filed Civil Miscellaneous Case No. 18 of 2006 under Order 41, Rule 19 of the Civil Procedure Code seeking re-admission of the appeal. Upon hearing, the learned District Judge, Moulavibazar rejected the Miscellaneous Case.

Being aggrieved, the appellant-petitioners preferred First Miscellaneous Appeal but the same was filed after a delay of 226 days.

Ms. Nasrin Sultana Rina, the learned Advocate for the petitioners submits that the impugned judgment and order passed by the learned District Judge, Moulvibazar, on 28.04.2008 and the appellants had entrusted the task of obtaining the certified copy of the impugned order and relevant papers to local Advocate clerk, namely one Rahen Miah who delayed the matter on various pretext and ultimately failed to supply the same. Realizing this, the appellant engaged another clerk of the learned Advocate Mr. Kamal Chowdhury, who applied for and obtained the same on 03.12.2008. The appellants then came to Dhaka on 11.12.2008 to engage learned Advocate Mr. M. Khaled Ahmed, however, at that time the Court was in vacation and the learned Advocate unavailable in Dhaka. Then the appellant returned home and unfortunately became ill with Jaundice from which he

recovered on 24.02.2009. Thereafter, the appellant met Advocate Mr. M. Khaled Ahmed who finally filed the appeal on 11.03.2009. In this manner the delay of 226 days occurred.

She further submits that the delay is unintentional and there is no deliberate laches and willful negligence on the part of the petitioners in preferring the appeal and if the same is not condoned the petitioners will suffer serious irreparable loss. She offers unconditional apology for such delay and humbly prays for making the Rule absolute.

No one appears on behalf of the respondents-opposite parties to oppose the Rule.

Heard the learned Advocate, perused the application for condonation of delay.

The submissions made by the learned Advocate for the petitioners as well as statements made in the application for condonation of delay appears to be reasonable to condone the delay in filing the First Miscellaneous Appeal before this Court.

Since, the explanation of the condonation of delay appears to be satisfactory, this Court is inclined to condone the delay.

Accordingly, this Rule is made absolute.

The delay of 226 days in filing the First Miscellaneous Appeal is hereby condoned.

There will be no order as to costs.

The office is directed to do the needful.